

IN THE MATTER OF:

LAND AT REEVES CLOSE, PORTHLEVEN, TR13 9PB

ADVICE

I. **INTRODUCTION**

1. I am instructed by Mr Johns (the Owner) in relation to the current status of some informal recreation Land At Reeves Close, Porthleven, TR13 9PB (the "Site"). A planning application, ref. PA25/06277 was made in respect of the Site (the "Application"). The Application proposed Outline Planning Application with all matters reserved for the Proposed Erection of a Self-Build Dwelling (the "Scheme"). The Application was received by the Cornwall Council (the "LPA") on 15 December 2023 and validated on 19 December 2023. Pursuant to s.70 TCPA 1990, the local planning authority refused planning permission for the Scheme, by a decision notice of 27 October 2025 (the Decision Notice).
2. The matters upon which I am asked to advise are set out in an email from Collaborative Planning dated 2nd November 2025, which raises a question concerning the Application and the status that of some informal open space within the Site This advice follows.

II. **SUMMARY OF ADVICE**

3. In summary:

- (i) It is my advice that the land that makes up the Site is not subject to any covenants or other status that restricts its use for open space for the public.
- (ii) It is also my advice that it is not open to the LPA to view the land that makes up the Site as a designation for open space use in accordance with their own policy documents and criteria.

4. I have set out a brief chronology of the site below:-

5. The Site was first proposed and established as open space in connection with a residential development granted planning permission in the late 1990s. It was secured as amenity or play space through a Section 106 Agreement dated 20 February 1998 (the S.106 Agreement) , which formed part of a scheme for the erection of sixteen dwellings on Vicarage Road (planning approval W2/PA92/00570/S01).
6. The Section 106 requirements included laying out the open space, providing public access, and paying a maintenance contribution to the Council. Following completion of these obligations, the intent was for the Council to assume responsibility for ongoing maintenance and use the area as public open space and play area. However, the Council never took over maintenance of the site. The implications of this position is set out in more detail below.

7. Key Chronology

Date/Period	Event
3 Nov 1992	Planning permission for residential development on Vicarage Road granted PA92/00570/S01 (the Original Permission)
6 Apr 1995	Application submitted to approve reserved matters, including open space provision
20 Feb 1998	Section 106 Agreement signed, formalising open space as amenity/play area; maintenance contribution and access secured

c.1998–early 2000s	Open space laid out and obligations under s106 reportedly discharged by the owners. No formal adoption by the Council took place
2019	Porthleven Green Space Assessment omits site from list of protected/designated open spaces.

Site Status and Policy Context

The land was never adopted or maintained by the Council despite the Section 106 obligations and payment of a maintenance fee.

The open space is not identified as a protected site in the current Porthleven Neighbourhood Development Plan or associated open space studies, reflecting its surplus status.

The local authority has repeatedly acknowledged that, while originally laid out as open space, the area is no longer actively used, managed, or formally protected as such.

This chronology demonstrates that the land's designation as open space is rooted in the planning permissions and obligations of the late 1990s but its role as public amenity has become redundant and effectively ended due to a lack of Council adoption and subsequent omission from recent open space assessments.

8. I have set out more detailed advice below, in my conclusion. I will be available to advise on further matters arising if and when required.

III. **DISCUSSION**

(i) **The status of the Site**

9. I am asked to advise on the status of the Site in law and whether the land has been restricted in any way to use solely for public open space.

10. It is clear from the history of the site that the s.106 Agreement was intended to be the mechanism by which the Site became public open space. To that end the

s.106 agreement includes the following clauses at schedule 3

THE THIRD SCHEDULE before referred to
(Stipulations and Provisions)

1. ON the commencement of the laying out of the public open spaces and play areas referred to in Paragraph 2 of this Schedule the Owners shall pay to the Council such sum on account of future maintenance costs of the public open spaces and play areas hereinafter referred to as may be specified by the Council's Chief Services officer (hereinafter referred to as the "Chief Services Officer").
2. WITHIN a period of six months from the substantial completion of seventy-five (75) per cent of the dwellings the Owners shall lay out the area shown coloured green on the plan being of not less than 0.097 hectares (0.248 acres) in total within the development land as public open spaces and play areas with an adequate means of public access and in accordance with the Council's Standard Specification for amenity areas on private residential estates (a copy of which is set out in the Fifth Schedule hereto) and all to the satisfaction of the Council's Chief Services Officer and shall thereafter dedicate the same to the Council for use as public open spaces and play areas whereupon the Council will take over all future liability to maintain the same.

11. In these clauses the key phrase is contained in paragraph 2 of schedule 3 to the s.106 Agreement in which the statement is made,

"and shall thereafter dedicate the same to the Council for use as public open spaces and play areas whereupon the Council will take over all future liability to maintain the same."

12. It is clear that the s.106 Agreement intended the land to be dedicated to the Council (who at that time were Kerrier District Council), however the s.106

Agreement itself does not actually effect the dedication of the land. The dedication of the land for use as public open space is separate step intended to be completed via another legal process that was required to have been completed, "with six months of the substantial completion of seventy five percent of the dwellings,"

13. In the context of development, "dedication" is often a misnomer for a transfer with restrictive covenants. As is standard practice, and as reflected in the Section 106 Agreement, the developer is obligated to submit an open space scheme and subsequently transfer the land. The s.106 Agreement envisages transferring the proposed open space land to Kerrier District Council. It was clearly intended that the transfer deed contain covenants restricting the use to "public open space, however it was also open to the parties to merely restrict the land via the imposition of restrictive covenants rather than transfer the land. The successful completion of either of these forms of, "dedication," prior to the lapse of six months of the substantial completion of seventy five percent of the dwellings would have constituted compliance with clause 2 of schedule 3 to the s.106 Agreement.
14. In fact the Owner paid the commuted sum for open space maintenance to the Kerrier District Council and was informed on the 22nd September 2005 that the Council's legal service had been requested to complete the formal legal adoption of the Site. This formal legal adoption did not occur and there are no restrictive covenants limiting the use of the Site in the Land Registry title to the Site CL102812.
15. It is the case that as the obligation to dedicate the land contained clause 3 of schedule 2 to the s.106 Agreement was not complied with in full (due to no fault of the Owner and in fact due to the Kerrier District Council's failure) within 6 months of the substantial completion of seventy five percent of the dwellings, this clause is no longer enforceable and cannot be relied on in any way.
16. The Limitation Act 1980 s.8 states:-

Time limit for actions on a specialty.

(1) An action upon a specialty shall not be brought after the expiration of twelve

years from the date on which the cause of action accrued.

(2) Subsection (1) above shall not affect any action for which a shorter period of limitation is prescribed by any other provision of this Act.

17. The S.106 Agreement has been completed as a deed and is therefore a specialty within the meaning of s.8 of the Limitation Act 1980. As such any enforcing authority would have needed to have commenced any action to enforce clause 3 of schedule 2 to the s.106 Agreement within 12 years of the expiry of 6 months of the substantial completion of seventy five percent of the dwellings. S.106(5) of the Town and Country Planning Act 1990 provides that a restriction or requirement imposed under a planning obligation is enforceable by injunction.

18. It is accepted by all parties that no injunction action was commenced against the Owner in relation to clause 2 of schedule 3 to the s.106 Agreement within 12 years of the expiry of 6 months of the substantial completion of seventy five percent of the dwellings and as such the clause in the s.106 Agreement requiring dedication of the Site as public open space is not enforceable and for the purposes of any consideration of the current planning use of the land has ceased to exist as a valid material consideration.

19. It is the case therefore that there are no legal restrictions on the site limiting the use of the Site to use as public open space. As such it is not open to the LPA to treat the Site as designated open space in accordance with their own policy criteria. This point is dealt with in more detail below.

(ii) Consideration of the Site as designated open space

20. The LPA have asserted in the Decision Notice that the Site is designated public open space that has been provided and maintained for informal recreation and community use since the original development of Reeves Close.

21. However this cannot be the case, the Council's own policy framework does not support this assertion. In 2014, Cornwall Council adopted the open space

strategy for larger towns in Cornwall as interim planning guidance (the Open Space Strategy). The Open Space Strategy provides the following as a definition for open space to which the strategy applies:-

*Open space is defined in the Town and Country Planning Act 1990 as land laid out as a public garden, or used for the purposes of public recreation, or land which is a disused burial ground. **For the purposes of this study we will focus on land that is in some form of public ownership and is regularly available for recreational or sporting use by the community.** This includes beaches, woodland & wetlands, school playing fields, private sports clubs, allotments and graveyards, as well as parks & gardens and amenity land.*

22. The Site does not fall within that definition in particular the text underlined and in bold. As set out above the site is not in some form of public ownership and access to the site can be withdrawn by the Owner at any time by virtue of the lack of legal right for the public to access the Site.
23. The Site itself is in Porthleven and whilst not directly dealt with by the Open Spaces Strategy, the standards and definitions in the Open Spaces Strategy must apply for consistency's sake.
24. The Site falls within the Porthleven Green Space Assessment area, yet it is omitted from the list of protected or designated open spaces. Its exclusion from the relevant assessment can only reasonably lead to the conclusion that the Site is not designated open space.

IV. CONCLUSION

25. In conclusion based on the information presented to me it is my advice that the Site is not subject to any legal restriction that requires it to be made available to the public for use as open space. This is due to the failure to complete the legal dedication of the land within 6 months of the substantial completion of 75% of the dwelling permitted by the Original Permission and a subsequent failure by the relevant local planning authorities to enforce any of the provisions of the s.106 Agreement (noting that any failure to complete steps required in the s.106 Agreement was in fact due to the relevant local planning authority's

failure). The implication of this being that access to site can be withdrawn at any time by the Owner.

26. The LPA have erred by viewing the Site as containing designated open space (within the meaning of their own policy framework) and as such it is not appropriate to rely on a designation as open space to justify a refusal of the Application.

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